

Raja Gupta @ Raja Babu Gupta v. State of U.P. and 2 Others

Allahabad High Court · Division Bench · 3 July 2023 · 2023:AHC:130084-DB · Writ - C No. 21025 of 2023 · **Writ disposed; respondent nos. 2 and 3 to look into and redress the billing grievance within ten days, without any opinion on the merits.**

HEADNOTE

A writ to correct electricity bills after a domestic 3 KW connection was changed to commercial use was disposed, with the parties' consent and without any opinion on the merits, by directing the Executive Engineer and the third respondent to look into the pending complaint and redress it within ten days of production of a certified copy. The department had submitted that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained.

FACTUAL SUMMARY

Raja Gupta of Village Karam Dharam Narora, Khader Napp, Tehsil Debai, District Bulandshahr held a 3 KW connection taken for domestic use and later changed to commercial use. A complaint to the third respondent brought no action. On 7 February 2023 he complained to the Executive Engineer, Electricity Distribution Division, Debai, and that complaint was still pending. He sought correction of his electricity bills and acceptance of current dues month to month on the meter reading, excluding the earlier disputed bills.

HOLDING-UNITS

INTERPLAY · Electricity Act, 2003 read with U.P. Electricity Supply Code, 2005

Pending billing complaint sent back to the distribution officers for redress without a merits finding

HOLDING

No useful purpose would be served by keeping the writ pending. With the parties' consent, and without any opinion on the merits, the petition is disposed by directing respondent nos. 2 and 3 to look into the petitioner's billing grievance and redress it within ten days of production of a certified copy of the order. That direction is given in view of the department's submission that the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 are self-contained and that the petitioner may pursue the remedy available under them. ¶ 4-6

FLAG The order names the Electricity Act, 2003 and the U.P. Electricity Supply Code, 2005 only as a self-contained remedy and states no section or clause number.

PRINCIPLE TAGS

billing-grievance-departmental-redress-without-merits Where a billing complaint is already pending with the distribution officers and the Act and Supply Code are treated as self-contained, the writ is not kept pending; the same officers are directed to look into and redress the grievance within a fixed time, and the Court does not decide whether the bills should be corrected. ¶ 4-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PREVIOUS DISPUTED BILLS MUST BE CORRECTED, AND WHETHER CURRENT DUES MUST BE ACCEPTED MONTH TO MONTH ON THE METER READING AFTER THE DOMESTIC-TO-COMMERCIAL CHANGE

The Court expressed no opinion on the merits and left redressal to respondent nos. 2 and 3. ¶ 6

